

25STCV34759 25STCV34759

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-07-22

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C735%2C07%2F22%2F2026

Source SHA-256: 460b913fed281ee13164eb5a3295f3c8b8ca8431566c9f89a3786ca9c659ef8f

Case Number: 25STCV34759 Hearing Date: July 22, 2026 Dept: 735

The Ramesh and Kalpana Bhatia

Family Foundation v. The Friendship Foundation, et al.

Motion for Stay of Discovery and Protective Order

BACKGROUND

This is a contractual fraud action. On May 8, 2026, Defendants their motion for stay of discovery. On June 29, 2026, Defendants filed their motion for protective order or alternatively, motion for relief from waiver of objections.

MEET AND CONFER

A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. Here, Defendants' counsel of record, E. Dorsey Kleger-Heine states that she requested to meet and confer telephonically on June 5, 2026 and provided her availability. (DKH Mot. for Prot. Order Decl., ¶15, Ex. M.) Plaintiff's counsel did not respond to the request for telephonic meet and confer. (Id.) Nonetheless, on June 22, 2026, the parties attended an informal discovery conference ("IDC"). (Id., ¶16.) Thus, Defendants fulfilled their meet-and-confer obligation.

DISCUSSION

As an preliminary matter, the court notes that Defendants initially requested an order staying discovery until the court ruled on Plaintiff's

motion for leave to amend the complaint. (Mot. for Stay of Discovery at 1:9-18.) The court granted Plaintiff's motion for leave to amend the complaint on June 5, 2026. (Min. Order, 6/5/26.) Subsequently, Defendants moved for an order extending the time to respond to discovery via protective order from May 10, 2026, to July 12, 2026, on the grounds that there was good cause to seek a stay pending the court's ruling on the motion for leave to amend because Defendants' opposition sought dismissal of the action. (Mot. for Prot. Order at 7:8-8:8.) Defendants have submitted evidence showing that they have since provided responses to Plaintiff's discovery requests and have begun producing responsive documents. (DKH Reply Decl., ¶¶7-8, Ex. C.) As such, the requests to stay discovery and to extend the time to respond to discovery are rendered moot.

To the extent that Defendants contend that filing a motion for protective order stays the time to respond to discovery pending the resolution of that motion, the protective order statutes do not contain any express language providing for automatic stays of discovery upon the filing of the motion. Moreover, there is no binding case authority staying a party seeking a protective order or stay of discovery relieves a party of its obligation to respond to discovery. Likewise, the filing of a motion for stay of discovery does not automatically stay the time to respond to discovery.

Alternatively, Defendants request an order relieving them from waiver of objections. Generally, a party to whom discovery requests are directed waives any right to object to such requests including on the basis of privilege or attorney-work product doctrine, if the party failed to serve timely responses. However, the court may relieve that party from this waiver on its determination that: (1) the party has subsequently served substantially compliant responses and (2) the party's failure to timely serve a response was the result of mistake, inadvertence, or excusable neglect.

Upon review of Defendants' discovery responses, the court finds these responses are substantially compliant. In accordance with a statement of compliance, Defendants identify the document responsive to the request; and that the documents are within their possession, custody, or control. As to their inability to comply with certain requests, Defendants have indicated whether or not such documents have ever existed and/or are not within the possession, custody, or control. In response to request for admissions, Defendants affirmatively "admit" or "deny." Similarly, in response to the form interrogatories, Defendants have answered them to the full extent. Furthermore,

the court finds that Defendants' failure to serve timely responses was due to mistake of law, i.e., Defendants' counsel's mistaken belief that filing a motion to stay and motion for protective order automatically stayed their time to respond to discovery. This case is distinguishable from *Scottsdale Ins. Co. v. Superior Court* (1997) 59 Cal.App.4th 263.

In the *Scottsdale* case, plaintiff's counsel in the mistaken belief that he would receive a favorable ruling on the motion for protective order, failed to serve timely responses to discovery, which the court concluded was a tactical choice versus mistaken belief.

(*Scottsdale Ins. Co. v. Superior Court* (1997) 59 Cal.App.4th 263, 275.) There is no indication that Defendants here withheld discovery as a stratagem. To the contrary, Defendants mistakenly believed that upon filing these motions, their obligation to respond to the pending discovery was automatically stayed until the resolution of these motions. (Mot. for Prot. Order at 10:23-11:27.) Defendants' misapprehension is evident by Defendants' citation to unpublished cases and their analysis of the provisions of Code of Civil Procedure. (Mot. for Prot. Order at 11:3-12:8.)

CONCLUSION

The court denies as moot Defendants' motion for stay of discovery and motion for protective order. The court grants Defendants' motion for relief from waiver of objections.

Defendants shall give notice.